

**Court No. - 37**

**Case :-** WRIT - C No. - 4678 of 2020

**Petitioner :-** Janakrani And Another

**Respondent :-** State Of U.P. And 3 Others

**Counsel for Petitioner :-** Vijay Singh Rathore

**Counsel for Respondent :-** C.S.C.,Baleshwar Chaturvedi

**Hon'ble Abhinava Upadhyaya,J.**

**Hon'ble Shamim Ahmed,J.**

The petitioners claim that they are not even consumer of electricity under the Electricity Act, however, recovery citation has been issued against the petitioners for a sum of Rs.70,030/- on 14.10.2019.

Sri Baleshwar Chaturvedi, on the other hand submits that the dispute is with regard to the amount of bill which can be dealt with by the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

The petitioners now file a detailed representation before the Executive Engineer, who shall consider the same and pass appropriate order in accordance with law within a period of two months.

For a period of two months, no coercive action shall be taken against the petitioners pursuant to the recovery citation dated 14.10.2019 (annexure 1 to the writ petition).

With the aforesaid observation/direction, the present writ petition is disposed of.

**Order Date :-** 10.2.2020

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**(Shamim Ahmed,J.)      (Abhinava Upadhyaya J.)**